
THE ESSAYS OF FRANCIS BACON

his judgment as upon an even ground. "Qui fortiter emungit, elicit sanguinem"¹; and where the wine-press is hard wrought, it yields a harsh wine that tastes of the grape-stone. Judges must beware of hard constructions and strained inferences; for there is no worse torture than the torture of laws. Especially in case of laws penal, they ought to have care that that which was meant for terror be not turned into rigor, and that they bring not upon the people that shower whereof the Scripture speaketh, "Pluet super eos laqueos"²; for penal laws pressed are a shower of snares upon the people. Therefore let penal laws, if they have been sleepers of long, or if they be grown unfit for the present time, be by wise judges confined in the execution. "Judicis officium est, ut res, ita tempora rerum," etc.³ In causes of life and death, judges ought (as far as the law permitteth) in justice to remember mercy, and to cast a severe eye upon the example, but a merciful eye upon the person.

Secondly, for the advocates and counsel that plead. Patience and gravity of hearing is an essential part of justice; and an

¹ He who wrings the nose strongly brings blood. ² He will rain snares upon them. ³ It is the duty of a judge to consider not only the facts but the circumstances of the case.